

instituting legal proceedings (*f*). Personal security changes from day to day, by reason of the personal responsibility of the debtor giving the security; and, as a testator's means of judging of the value of that responsibility are put an end to by his death, the executor who omits to get in the money within a reasonable time * becomes himself [*291] the security (*a*). An executor will be equally liable if he knows that a *co-executor* is a debtor to the testator's estate, and does not take the same active steps for recovery of the amount from the co-executor, as it would have been his duty to take against a stranger. And it does not vary the case that the testator himself was in the habit of leaving money in the hands of that co-executor, and treating him as a private banker (*b*). Nor will an executor be excused for not calling in money on personal security by a clause in the will, that the executors are to call in "*securities not approved by them*;" for such a direction is construed as referable to securities upon which a testator's property may allowably be invested, and not as authorizing an investment which the Court will not sanction (*c*). And if a settlement contain a clause that the trustees are to get in the money "whenever they shall think fit and expedient so to do," they will be liable, if they refrain from enforcing payment out of tenderness to the tenant for life without a due regard to the interests of *all* the *cestuis que trust* (*d*). If, however, it appears, or there is reasonable ground for believing, that had legal steps been taken they would have produced no useful result, the executor or trustee is not liable (*e*).

6. **Case of trust fund outstanding on mortgage.**—Money outstanding upon good *mortgage* security an executor is not called upon to realize, until it is wanted in the course of

(*f*) *Lowson v. Copeland*, 2 B. C. C. 156.

(*a*) *Bailey v. Gould*, 4 Y. & C. 226, *per* Baron Alderson.

(*b*) *Styles v. Guy*, 1 Mac. & G. 422; 1 Hall & Tw. 523; *Egbert v. Butter*, 21 Beav. 560; *Candler v. Tillett*, 22 Beav. 257.

(*c*) *Styles v. Guy*, 1 Mac. & G.

428; and see *Scully v. Delany*, 2 Ir. Eq. Rep. 165.

(*d*) *Luther v. Bianconi*, 10 Ir. Ch. Rep. 194.

(*e*) *Clack v. Holland*, 19 Beav. 262; *Hobday v. Peters* (No. 3), 28 Beav. 603; *Alexander v. Alexander*, 12 Ir. Ch. Rep. 1; *Maitland v. Bateman*, 16 Sim. 233, note; *Walker v. Symonds*, 3 Sw. 71.